

**BLANCO v NEW MELONES LAKE MARINA, LLC, et al**

**23CV46842**

**DEFENDANTS BRADEN'S MOTION FOR GOOD FAITH SETTLEMENT**

This case involves personal injury incurred during a boating incident. Now before the Court is a motion for good faith settlement brought by Defendants/Cross-Complainants Richard and Jamie Braden. The motion is opposed by Defendant New Melones Lake Marina ("Marina"), primarily on the grounds that the proposed settlement does not reflect the Bradens' proportionate liability nor Marina's claims for contractual indemnity.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3 3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

**Pursuant to Local Rule 3 3 7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]**

Failure to include this language in the notice may be a basis for the Court to

deny the motion.

However, in the interests of justice and judicial economy, the Court will forego this shortcoming in this one instance as a substantive ruling will allow the Mandatory Settlement Conference to proceed as scheduled for July 14, 2025. All parties are cautioned that any future motion filings that do not contain the mandated language will be denied.

## **I. Facts and Settlement History**

### **A. The Complaint**

In July 2021, 15-year old Brett Blanco (“Brett”)<sup>1</sup> and his family were vacationing for several days in Arnold, California. On July 10, 2021, Brett and his family went to spend the day with other families at New Melones Lake. On that date, Richard Braden (“Richard”) rented several watercrafts from New Melones Lake Marina LLC (hereinafter “New Melones Marina”), including a houseboat, a speed boat, and a jet ski. The houseboat was intended to be the primary vessel for the large group comprised of roughly 7 adult couples and 17 children. It was two stories and included a water slide off the port-side stern.

Prior to checking the boats out, a New Melones Marina employee gave several members of the group, including Brett’s father Brandon Blanco (“Brandon”) a limited safety checkout. This primarily included information about safety and rescue devices and rules of basic boating safety. The houseboat was lacking a functioning horn.

Brandon, an experienced boater, operated the houseboat during the morning without incident. In the early afternoon, Brandon and several other adults from the group left the houseboat to go on a speedboat owned by another individual. Brett remained on the houseboat. After Brandon left, Richard took over operating the houseboat. It is undisputed that Richard consumed alcohol, though the exact amount is unclear.

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<sup>1</sup> Due to common surnames among various people involved, the Court uses first names. No disrespect is intended.

At 2:25 p.m., the houseboat was drifting near a cove while Brett and the other children were playing near the waterslide. There was loud music playing from multiple speakers on the houseboat. As Brett was heading down the slide, Richard suddenly turned the engine on and reversed the houseboat. Allegedly, neither Brett nor any others on the upper deck of the houseboat heard warnings that the engine would be turned on or that the houseboat would be placed in reverse. As Brett went down the slide, he heard the engine start and then felt himself “sucked down” towards the back of the houseboat. While beneath the houseboat, both of his feet were struck by the large propeller. Brett suffered severe injuries to both his feet and was transported back to the Marina by another boat.

At some point, Brett’s parents learned of the accident and met Brett at the Marina. Brett was transported by air ambulance to Memorial Medical Center in Modesto and then transferred to UC Davis Medical Center. He suffered significant injuries and damages.

Thereafter, Plaintiff filed his complaint for damages against Marina and Richard.

## **B. Cross-Complaint**

Marina filed a cross-complaint against Richard and Jamie Braden for: 1) contractual indemnification, 2) equitable indemnification, 3) contribution, and 4) declaratory relief.

According to the cross-complaint, in order to rent the houseboat, the Bradens signed a rental contract (“Contract”) which included an express indemnity clause. (Cross-Complaint, Ex. A.) The Contract specifies that it is between the Marina and the “Charter Party.” The Contract was signed by Jamie Braden as the “Charter Party” and Jamie’s initials appear next to the various paragraphs in the Contract. Richard’s signature is on the Contract as an “Additional Captain.” (*Id.*) Richard’s initials do not appear next to any of the specific contractual provisions.

The cross-complaint also alleges a cause of action for equitable contribution on the grounds that the Bradens were themselves negligent and caused the accident.

## **C. Settlement History**

In December of 2024, the case was settled as between Plaintiff and the Bradens. A mutual release was signed by Plaintiff and the Bradens on or about January 8, 2025. (Bradens’ MPA, Ex. A) (“Settlement.”) Pursuant to that Settlement, the Bradens agreed

to pay \$80,000 to Plaintiff in exchange for dismissal of the Bradens as Defendants, and the dismissal of their cross-complaint against Marina and Brandon.

The Settlement was contingent upon the granting of the instant motion. However, because Defendant Marina requested that the parties engage in a global mediation, the Court's settlement conference was postponed until February 2025. On March 11, 2025, the parties held a global mediation with Chris Lavdiotis. Plaintiff and Marina did not reach an agreement.

The Bradens now bring a motion for good faith settlement. They assert that after the March 2025 global settlement failed to bring a resolution to the entire matter, the Plaintiffs have not pursued their case any further. They argue that the Settlement terms are reasonable and that they should be released from any further obligations in this matter.

Marina opposes the motion for good faith settlement. Marina argues that Braden was criminally charged for his conduct in the accident and is contractually and equitably obligated to indemnify Marina.

## **II. Legal Standard**

Code of Civil Procedure section 877 provides, in relevant part:

Where a release, dismissal with or without prejudice, or a covenant not to sue or not to enforce judgment is given in good faith before verdict or judgment to one or more of a number of tortfeasors claimed to be liable for the same tort, or to one or more other obligors mutually subject to contribution rights, it shall have the following effect:

- (a)** It shall not discharge any other such party from liability unless its terms so provide, but it shall reduce the claims against the others in the amount stipulated by the release, the dismissal or the covenant, or in the amount of the consideration paid for it, whichever is the greater.
- (b)** It shall discharge the party to whom it is given from all liability for any contribution to any other parties.

Code of Civil Procedure section 877.6 provides that any party where two or more parties are joint tortfeasors is entitled to a hearing on any settlement entered into with any other tortfeasor (subd. (a)(1)) or any joint tortfeasor may provide notice of settlement and an application for the Court to find a good faith settlement (subd. (a)(2).) Pursuant to subdivision (c), a “determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. When determining whether the settlement was made in good faith, the Court may review affidavits and counter affidavits, as well as any other evidence that the court, in its discretion, decides to hear. (Code Civ. Proc. § 877.6(b.)

The determination of whether a settlement has been reached in “good faith” requires that “the amount of the settlement is within the reasonable range of the settling tortfeasor’s proportional share of comparative liability for the plaintiff’s injuries,” taking into account the facts and circumstances of the particular case at the time of settlement. (*Tech-Bilt*, supra, 38 Cal.3d at p. 499.) In determining whether the settlement is within a “reasonable range,” the Court must consider various factors such as: 1) a rough approximation of plaintiff’s total recovery and the settlor’s proportionate liability; 2) the amount paid in settlement; 3) the allocation of settlement proceeds among plaintiffs; 4) a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; 5) the settlor’s financial condition and insurance policy limits; and 6) evidence of collusion, fraud, or tortious conduct between the settlor and the plaintiffs aimed at making the nonsettling parties pay more than their fair share. (*Tech-Bilt*, supra, 38 Cal.3d at p. 499.) Another key factor is the settling tortfeasor’s potential liability for indemnity to joint tortfeasors. (*Far West Financial Corp. v. D & S Co.* (1988) 46 Cal.3d 796, 816.)

The party asserting a lack of good faith has the burden of proof on that issue. (Code Civ. Proc. § 877.6, subd (d).) In doing so, the objecting party must demonstrate that the “settlement is so far ‘out of the ballpark’ in relation to these factors as to be inconsistent with the equitable objectives of the statute.” (*TechBilt*, supra, 38 Cal.3d at pp. 499-500.) However, where the “good faith” is contested, the settling party must make a sufficient showing of the *Tech-Bilt* factors. (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261.)

### III. Discussion

The Settlement Agreement itself, though referenced as Exhibit A to the Bradens' Memorandum of Points and Authorities, was not provided to the Court. From what has been presented in the papers, the Settlement Agreement provides for the Bradens to pay Plaintiff \$80,000 in exchange for a mutual release. (MPA p. 5.) The Bradens contend that the settlement with Plaintiff meets the non-exhaustive criteria set forth in *TechBilt*.

Marina opposes the motion, primarily on the grounds that the proposed settlement does not reflect possible recovery nor accurately consider the Bradens' proportionate liability, and does not fairly assess the Bradens' indemnification liability. Marina also asserts that the Bradens may have access to insurance coverage, or additional financial resources, about which they have been less than forthcoming.

### Recovery and Proportionate Liability

The Bradens provided little information as to the value of Plaintiff's claim aside from asserting that Brett had roughly \$350,000 in medical damages alone. No other information about Brett's damages or requested relief is given. Marina provided additional information, at least as to Plaintiff's valuation of his claim, noting that Plaintiff is seeking nearly \$4 million in damages. (Declaration of Mark E. Lovell ("Lovell Decl.") ¶ 8, Ex. 6.) If the Plaintiff's claim is worth \$4 million, then \$80,000 would be 2% of the total value of the claim. On reply, the Bradens assert that Plaintiff's 998 demanded \$774,999.99.

The Bradens argue, essentially, that neither Richard nor Jamie are liable for Plaintiff's injuries. They assert, that Brett would not be able to recover from them because he assumed the risk by engaging in a watersport. They do not provide an acknowledgement or assessment of Richard's role in placing the boat in reverse while children were on the slide, nor the impact of an alcoholic beverages Richard may have consumed. There is further no assessment of the liability Marina might have if Plaintiff's contentions – i.e., that the boat was unsafe, that there was a gross lack of safety considerations – are believed by a factfinder.<sup>2</sup> With the information before it, the Court cannot reasonably conclude that the settlement amount, which again is about 2% of the

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<sup>2</sup>Impermissibly, the Bradens seem to be asking the Court to rule on their previously filed Motion for Summary Judgment and have asked the Court to give judicial notice to the several hundred page document. The Court declines to do so as that motion is not before the Court.

Plaintiff's first stated claim for damages, accurately reflects the Bradens' liability.<sup>3</sup> Even under the broad "ballpark" directive of *Tech-Bilt*, the evidence before the Court is insufficient to find the settlement offer is within the reasonable range of the Bradens' potential exposure.

#### Settlor's financial condition and insurance policy limits

The Bradens assert that there is no available insurance and that all potential policies have been determined, by the insurers, to not apply. (Reply Declaration of Cory Birnberg ("Birnberg Reply Decl.") ¶ 8.) Neither Jamie nor Richard provide any information about their financial situation in their declarations, but in their MPA they state that Jamie is unemployed and Richard sells "holistic dental remedies." (MPA p. 9.) They provide no other information about their financial condition.

Marina argues that the Bradens have been less than forthcoming about their financial conditions. Marina also asserts that the Bradens have their own bad faith lawsuit against one of their insurance companies related to a denial of coverage. The Bradens do not deny that they are actively pursuing a claim for bad faith against one of their insurers. (Reply Birnberg Decl. ¶ 17.) The bad faith lawsuit may ultimately affect any analysis of the propriety of an individual settlement by the Bradens..

#### Collusion, fraud or tortious conduct between Bradens and Plaintiff

There is no evidence of collusion or fraud between the Bradens and Plaintiff to force Marina to pay more than its fair share of damages. However, the fact that the Bradens were actively pursuing a separate bad faith claim and did not inform Plaintiff at the settlement is concerning.

None of the *BiltTech* factors are determinative (rather more in the nature of illustrative), and in the end, the Court must use its judgment to determine whether the settlement was made in good faith and furthers the goal of equitable distribution of liability. Here, Marina has presented sufficient evidence that the settlement does not equitably apportion sufficient liability (and damages) to the Bradens. Additionally, the Court notes

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<sup>3</sup> The Court is cognizant of the fact that settlements often are less than what a party may be liable for if the matter goes to trial and has taken that into consideration.

a finding of good faith settlement under the Code serves to bar any claims for equitable comparative contribution, or partial or comparative indemnity, but does not eliminate claims for *contractual indemnity*, so that portion of the cross-complaint would survive any such finding.

Accordingly, the Motion is **DENIED**.

The clerk shall provide notice of this ruling to the parties forthwith. Defendant Marina to prepare a further formal Order conforming to this ruling in compliance with Rule of Court 3.1312..



**MARTIN v SANCHEZ, et al**

**24CV47669**

**EA FAMILY SERVICE'S DEMURRER and  
MOTION TO STRIKE PORTIONS OF THE COMPLAINT**

Plaintiff Caleb Martin ("Plaintiff") filed his Complaint arising out of allegations of sexual child abuse against Janine Ann Sanchez ("Sanchez"), Environmental Alternatives<sup>4</sup>, EA Family Services ("EA Services") and Does 1-50 (collectively, "Defendants"). Now before the are two motions filed by EA Services: 1) demurrer to the first cause of action for sexual abuse; and 2) a motion to strike claims for punitive damages. Both motions are addressed herein.

Counsel for EA Services avers that he attempted to meet and confer regarding both the demurrer and motion to strike but did not receive answers from Plaintiff's counsel. (Declarations of Jihan El Saouda.)

Plaintiff has filed notice that he does not oppose the motion to strike punitive damages filed by EA Services. Accordingly, the motion to strike is GRANTED.

**I. Facts**

Plaintiff, while a minor of approximately 14 years of age, was placed by EA Services as a foster child into the home of Sanchez. Subsequently, Plaintiff claims that he was subjected to sexual abuse by Sanchez. Plaintiff contends that Sanchez coerced him into participating in the sexual conduct. On July 19, 2016, Sanchez was arrested for various felonies related to these allegations. Plaintiff asserts that the alleged abuse resulted in mental, physical, and emotional pain and suffering.

Plaintiff has brought the instant action against moving Defendant EA Services for the single cause of action of child sexual abuse.

**II. Legal Standard**

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<sup>4</sup> Defendants assert that EA Family Services was erroneously also sued as Environmental Alternatives.